

[Recent Reports](#)[Support HRW](#)[World Report 1999](#)[Order Online](#)

CAMBODIA

With the defection or arrest of the remaining Khmer Rouge forces and the launching of a new coalition government following tumultuous 1998 national elections, political tensions eased in Cambodia and for the first time in thirty years the country was not at war.

Impunity for human rights abusers, however, continued largely unabated. By October, none of the surviving Khmer Rouge leadership had been brought to justice, and throughout the year many civilian and military authorities continued to commit crimes with impunity. Human rights monitoring continued to be a risky profession, with the unsolved killing of an activist member of the Cambodian Human Rights and Development Association (ADHOC) and the arrest and trial of two workers from the Cambodian League for the Promotion and Defense of Human Rights (known by its acronym LICADHO), on spurious charges of having incited a demonstration against toxic waste. The two were later acquitted. Torture by police of detainees, undue use of lethal force by police in apprehending suspects, complicity of military and police in trafficking of women and children for sexual exploitation, and excessive pretrial detention periods were endemic problems, as was confiscation of land by military personnel and local officials. The judiciary was far from independent, and numerous court decisions were influenced by corruption or political dictates.

Human Rights Developments

A key issue during the year was whether or not senior Khmer Rouge officials would be brought to justice. By midyear, all surviving members of the top Khmer Rouge leadership-Khieu Samphan, Nuon Chea, Ieng Sary, Ieng Thirith, Chhit Choeun (Ta Mok), Ke Pauk, and Kaing Kek Iev (Duch)- had either defected to or been taken into custody by the government. As of October, however, none had been brought to trial. When former Khmer Rouge Standing Committee members Khieu Samphan and Nuon Chea defected in December 1998, the two men were given VIP treatment by Hun Sen before being allowed to retire in the town of Pailin. In February, Ke Pauk, former chief of the Khmer Rouge's Northern Zone and allegedly responsible for the massacre of thousands of people in eastern Cambodia, was made a one-star general in the Royal Cambodian Armed Forces (RCAF). Ieng Sary, former Khmer Rouge foreign minister who defected in 1996, continued to operate freely in Pailin, with former Khmer Rouge commanders issuing periodic threats that if Sary were brought before a tribunal it could lead to a resumption of civil war.

On March 6, government forces arrested former Khmer Rouge Standing Committee member Ta Mok, followed by the arrest in May of Duch, the former head of Tuol Sleng prison, a notorious torture center. The military court detained both men in the military prosecutor's prison in Phnom Penh and charged them first with violating the 1994 Law Outlawing the Democratic Kampuchea Group. They were then charged with genocide under a 1979 law. (Pol Pot and Ieng Sary were tried in absentia in 1979 in a "revolutionary tribunal" established by that same law.) Human rights organizations questioned the legality of both men being charged by the military court, since neither has served in the Royal Cambodian Armed Forces. They also questioned whether the 1979 law met international standards of justice.

In an effort to buy more time as the six-month pretrial detention period for Ta Mok neared in August, the National Assembly and Senate passed a law extending the pretrial detention period from six months to a maximum of three years for people charged with genocide, war crimes, and crimes against

humanity. The law penalizes those who have not yet been proven guilty in court, and some Cambodians feared it could be used against members of the political opposition.

In 1997 the two then co-premiers of Cambodia had requested U.N. assistance to help bring the Khmer Rouge to justice and the U.N. Secretary-General appointed a legal team known as the group of experts. The team's report was released in early March 1999 to the secretary-general and the Cambodian government. It concluded that domestic trials organized under Cambodian law were not feasible and proposed that an ad hoc international tribunal be held outside of Cambodia for crimes against humanity and genocide committed from 1975 to 1979. The experts found that Cambodia's court system lacked the essential elements of fairness: a trained cadre of judges, lawyers, and investigators; adequate infrastructure; and a culture of judicial impartiality. U.N. Secretary-General Kofi Annan concurred.

Premier Hun Sen rejected the U.N.'s recommendations, announcing in March that Cambodia was considering a Truth and Reconciliation Commission and then declaring that Cambodian courts were competent to conduct their own trials. In April, Hun Sen stated that foreign judges and prosecutors could participate in trials conducted in Cambodia and welcomed U.N. assistance to draft legislation to that effect. On June 30, a second U.N. team of experts recommended to the Security Council that trials take place in Cambodia, with indictments prepared by international prosecutors and approved by a predominantly non-Cambodian panel of judges appointed by the Secretary-General. Hun Sen rejected this formulation. Having a minority of Cambodian judges, he argued, constituted a violation of national sovereignty. In August, the Cambodian government presented its own draft tribunal law to the U.N., which firmly placed any tribunal within the Cambodian national court system. Foreign judges and prosecutors would be allowed to participate, but only in a minority. When Hun Sen met with U.N. Secretary-General Kofi Annan in September he proposed that either the Cambodian government organize its own tribunal with limited international participation; that the U.N. not participate in a tribunal at all but only provide legal advice; or that the U.N. bow out of the process completely. However, in October Hun Sen appeared to welcome an initiative by the U.S. to forge a compromise, although nothing had been resolved by the end of the month.

In addition to stalling on the question of past abuses, the government also failed to prosecute civilian and military authorities responsible for more recent crimes and human rights abuses. Research conducted by ADHOC and LICADHO found that police, military, gendarmerie, militia members, or local officials allegedly killed at least 263 people during a twenty-two month period from January 1997 through October 1998. While many of these murders appeared to have been deliberate executions, few of the perpetrators had been brought to justice by the end of 1999. In addition, an estimated 130 crimes with political connotations, including assassinations and disappearances, were documented by the Cambodia Office of the High Commissioner for Human Rights (COHCHR) between August 1997 and October 1998. Most of these crimes have never been investigated or brought to trial.

In June, the Ministry of Interior authorized the establishment of local civilian militia groups-unarmed other than clubs, knives, or hoes -ostensibly to reduce crime and take the place of armed militia that have answered to commune (sub-district) officials in the past. Human rights advocates expressed concerns that the civilian security patrols would contribute to an increase in vigilante executions of alleged robbers and also be used to intimidate potential opposition candidates in upcoming commune elections.

The problem of impunity was compounded by the lack of neutrality and independence in the judicial and law enforcement systems, as well as a low level of professionalism in those bodies. Key institutions such as the Supreme Council of Magistracy and the Constitutional Council remained largely inactive and lacked credibility, effectively leaving the country with no institutions to discipline judges or rule on the constitutionality of legislation.

A law that effectively institutionalized impunity, article 51 of the Common Statutes on Civil Servants, was amended in August by the National Assembly and Senate. Previously article 51 provided protection to government employees who commit crimes by requiring the permission of the perpetrator's ministry prior to arrest. In its amended form, article 51 requires the prosecutor to inform

the head of the concerned institution within seventy-two hours before charging a suspect who is a civil servant. However, ambiguities in the article (such as whether prosecutors should continue to warn a perpetrator's ministry before charging or arresting a perpetrator) continued to provide a degree of protection to civil servants who commit crimes.

Excessive use of lethal force and misuse of weapons by law enforcement officials continued to be a problem during the year, with the instant reaction to an apparent crime often being to kill the alleged perpetrator, rather than waiting for a case to work its way through the politicized, weak, and often corrupt court system.

Decades of war have left Cambodia awash with weapons and landmines. A campaign to impound unlicensed weapons, authorized by subdecree number 62 in April, met with limited success. Thousands of weapons were seized and many destroyed in public ceremonies, although Deputy Prime Minister Sar Kheng admitted in August that many of the confiscated weapons were subsequently sold on the black market. In May, the National Assembly approved the 1997 Ottawa treaty banning the use, production, and storage of antipersonnel landmines. However, the country's national demining agency, the Cambodian Mine Action Center (CMAC) suffered a huge setback and loss of donor confidence after press accounts emerged of corruption and mismanagement by CMAC officials, who were found to have engaged in "contract de-mining," where land is de-mined to benefit commercial interests rather than ordinary Cambodians.

Citizens who chose to demonstrate during the year were largely allowed to do so, despite the chilling effect of the arrest of the LICADHO workers in December 1998. Farmers gathered at the National Assembly to protest evictions, teachers rallied to demand higher wages, and students marched to Thai and Vietnamese embassies to protest alleged border incursions. In general, the demonstrations passed without incident, although permission was denied for several demonstrations, such as an anti-Khmer Rouge rally planned in February just before a meeting of Cambodia's donors in Tokyo, and a May 1 workers' demonstration. In August, three members of the opposition Sam Rainsy Party (SRP) were temporarily detained by police, who confiscated leaflets they were distributing announcing a march in support of an international tribunal.

The government sought to restrict freedom of expression, although there were far fewer attacks on journalists than in previous years. From March through September, the Ministry of Information suspended the issuance of new press licenses, stating that too many licenses had already been issued and the ministry needed to develop new requirements for potential newspaper owners. In February, the ministry sent warning letters to Smardei Khmer (Khmer Spirit) and Neak Sre (Farmer) newspapers for publishing articles critical of King Sihanouk. In March, the ministry issued warnings to Samleng Yuvachun Khmer (Voice of Khmer Youth) and Smardei Khmer newspapers, alleging that they had violated the Constitution and press code for attacking the king and Hun Sen. In September, Samleng Yuvachun Khmer was again issued a warning by the ministry for an article that criticized Prince Ranariddh, and Sathearanak newspaper was suspended for thirty days for allegedly insulting the king. Also in September, Moneaksekar Khmer (Khmer Conscience) was summoned to court for defamation for charging that Hun Sen had attempted to assassinate Sam Rainsy and suggesting that Military Intelligence Chief Mol Roeup was bribing SRP members in order to infiltrate and destroy the opposition party.

The Cambodian People's Party (CPP) of Hun Sen continued to dominate radio and television airwaves. However, in March the opposition Sambok Khmum (Beehive) radio station was allowed to resume broadcasting, after being closed by the government in September 1998. In August, Prince Ranariddh's FUNCINPEC party was allowed to buy back its radio station from a pro-CPP company that had been running the station since it was confiscated by the CPP during the 1997 coup.

Without an election campaign to raise political tensions, 1999 saw a decrease in political violence. Nevertheless, one member of the opposition SRP, Chhum Doeun, was killed by a group of men in military uniforms on March 25 at his home in Kandal province. The motive is thought to have been political; Doeun had been active in the 1998 campaign and post-election demonstrations, when he criticized alleged election irregularities, and he was a prospective candidate in upcoming commune elections.

The SRP came under further pressure in September, when military police arrested member Mong Davuth in Siem Reap and Battambang member Kong Bun Hean in Phnom Penh in connection with a rocket attack in September 1998 on a motorcade carrying Hun Sen. Both men were sent to the military prosecutor's prison in Phnom Penh. During the same time, several SRP officials in Battambang had their houses surrounded and searched by civilians supported by military police. In addition, several SRP members complained of being harassed by police during the year.

On October 6, SRP member of parliament Lon Phon, who represents Battambang, was abducted from his house in Phnom Penh by four armed men dressed in military uniforms. After payment of a ransom he was released on October 9. Government denials of any link to the abduction were greeted with skepticism in Phnom Penh, given the pattern of state harassment of the opposition. In September, five senior army generals aligned with the FUNCINPEC party were summoned to answer questions by army intelligence chief Mol Roeup about their alleged involvement in the Siem Reap rocket attack. In addition, the home of Nhek Bun Chhay, a former senior FUNCINPEC general who had become a member of Cambodia's Senate, was raided by a group of armed men in military uniforms on September 13.

On July 31, a member of a Vietnamese organization opposed to the Communist regime in Hanoi was arrested by Cambodian authorities in Pailin. Police arrested Vu Duc Binh and transported him to Phnom Penh. Since then his whereabouts have been unknown, and the Cambodian Ministry of Interior denied any knowledge of the incident.

Prison conditions remained poor in 1999, with many long-term prisoners suffering from malnutrition and approximately one-quarter of the prisons lacking access to medical care. In June, two escaped prisoners were allegedly killed execution-style with shots to the head by prison guards at the Sihanoukville prison upon recapture. A local human rights group reported that approximately 25 percent of Cambodia's prison inmates claim to have been mistreated while in police custody after arrest. The same NGO reported 286 cases of torture in police custody and thirty cases in prison between January and August 1999. At the Youth Rehabilitation Center in Phnom Penh, thirteen out of forty-eight detainees claimed they were mistreated or tortured by police.

Throughout 1999 human rights and legal aid organizations reported a substantial increase in the number of land-related complaints received. A study conducted by Oxfam showed that law enforcement and military authorities were involved in most land conflicts. For example, in May in Ratanakiri province, district authorities accompanied by armed police and gendarmerie coerced representatives of several ethnic minority villages into allowing a Taiwanese company to log in areas considered sacred and on which the ethnic minorities depended for hunting and collection of forest products. Throughout 1999, a coalition of local and international NGOs worked on amending the 1992 land law in order to address issues of transparency and control over concessionaires, state confiscation of land, and the rights of indigenous peoples to obtain communal land title.

In March, in one example of a typical land conflict, gendarmerie in Prey Veng opened fire on villagers protesting land confiscation, shooting and injuring two and beating numerous others with bamboo poles and rifle butts. One villager was hit on the head with a machete by another civilian in the presence of gendarmerie, who then tied him to a truck for three days. Fifty-three other villagers were tied up and taken on a twelve-hour forced walk, boat, and truck journey, without food and water, to the provincial town. As of October, none of the perpetrators had been brought to justice.

Defending Human Rights

Domestic and international human rights organizations were allowed to operate in Cambodia, but their work was not without risk. The December 1998 killing of an ADHOC activist in Kandal province who had been helping families resist eviction remained unsolved as of October 1999. In January, provincial representatives of domestic human rights organizations in seven provinces were intimidated by government authorities, and one NGO worker was threatened with arrest during a campaign to gather signatures from Cambodians requesting the U.N. to establish an international tribunal for the Khmer Rouge.

Human rights defenders suffered a further setback with the arrest, one-month detention, and trial of two LICADHO employees after they monitored demonstrations against toxic dumping in Sihanoukville that turned violent. The two workers were acquitted in July after a three-day trial that U.N. and international observers said should never have occurred in the first place because of lack of evidence and procedural errors.

Also in July, workers from ADHOC and LICADHO came under threat of arrest in Koh Kong province after assisting in a human rights case; this was resolved only after strong intervention from the Cambodia Office of the High Commissioner for Human Rights (COHCHR) and the Cambodian Human Rights Action Committee, a coalition of local human rights groups.

In August the COHCHR extended its memorandum of understanding with the government, enabling it to operate until March 2002. In September, however, Hun Sen called for the closure of the Office of the Secretary-General's Personal Representative in Cambodia at the end of its mandate in January 2000. The office had been active in monitoring political violence during the 1998 election campaign. As of October, the National Assembly had not acted on a much criticized new law that would place restrictions on NGOs.

The Role of the International Community

United Nations

In December 1998, Cambodia regained its seat at the U.N. General Assembly, vacant since the 1997 coup. The U.N. special representative of the secretary-general on the situation of human rights in Cambodia, Thomas Hammarberg, made numerous trips to Cambodia during the year, focusing on impunity, land rights, indigenous minorities, and bringing the Khmer Rouge to justice. In July, the U.N. Human Rights Committee evaluated Cambodia's compliance with the International Covenant on Civil and Political Rights. The Concluding Observations of the Human Rights Committee included concerns about weaknesses in the judicial system, impunity, killings by security forces, deaths in custody, torture, trafficking for labor and sexual exploitation, and the fact that Khmer Rouge leaders had not been brought to trial.

Donor Countries

In February, the Consultative Group (CG) of Cambodia's international donors, convened by the World Bank, met in Tokyo for the first time since the 1997 coup. Donors pledged U.S. \$470 million, conditioned on the government's implementation of political, economic, and social reforms. In June, at the first quarterly donor meeting to evaluate Cambodia's progress, donors did not evaluate in any depth the country's progress in addressing human rights violations, although donors expressed satisfaction with the country's steps to reform fiscal and public administration, military demobilization, and forestry practices.

Association of Southeast Asian Nations (ASEAN)

On April 30, Cambodia became a member of the Association of Southeast Asian Nations (ASEAN). Japan, which was Cambodia's top donor and host of the donor meeting, focused primarily on restoring stability in Cambodia and did not link any of its aid to human rights improvements. On the other hand, when the Japanese foreign minister met with Hun Sen in February, he voiced concern about abuses committed in connection with the 1997 coup and also urged that criminals responsible for genocide be brought to justice. In June, Japan expressed its support for a domestic tribunal to try the Khmer Rouge, as long as it met international standards and due process, but did not offer to provide assistance. Japan pledged \$100 million at the donor meeting, including \$3.9 million for landmine removal.

China

In March, China expressed strong opposition to an internationally-sponsored tribunal to try the Khmer Rouge, stating that this was the imposition of the international community's agenda on Cambodia. In June, Chinese Foreign Minister Tang Jiaxuan lobbied Cambodian parliamentarians to reject foreign

involvement in any tribunal, charging that such a process would interfere with Cambodia's sovereignty.

European Union

The European Parliament passed a resolution in April condemning attempts by the Cambodian government to prevent the creation of an international tribunal by the U.N. and calling on all European Union (E.U.) member states and the European Council to fully cooperate with the creation of such a tribunal. The European Commission provided 1 million euro (U.S. \$1,078,400) in March to support refugee repatriation, followed by a pledge in July by the E.U. of U.S. \$5.7 million to fund NGOs working on health care, refugees, and demining. In July, the E.U.'s Council of Ministers adopted key agreements offering preferential market access for textile imports from Cambodia.

United States

The United States continued to take a strong stance on human rights issues, with Secretary of State Madeleine Albright pushing for an international tribunal when she visited Thailand in March. Several U.S. Congressmen visited Cambodia during the year and raised the issue of bringing the Khmer Rouge to justice. In June, the Congressional Human Rights Caucus, a bipartisan group of more than 180 members of Congress, wrote to Hun Sen to call for the dismissal of charges against the two LICADHO workers. A senior State Department official visited Cambodia in July and urged dismissal of the LICADHO case as well as an end to official impunity. In July, the U.S. announced an aid package of \$3.4 million to Cambodian human rights NGOs. The foreign aid bill for fiscal year 2000 conditioned any resumption of assistance to the Cambodian government on steps to end impunity and cooperation with an international tribunal for the Khmer Rouge.

TOP OF PAGE